

Andhra Pradesh Scheduled Castes Sub-Plan (SCSP) and Tribal Sub-Plan (TSP) (Planning, Allocation and Utilization of Financial Resources) Rules of 2013

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State of Andhra Pradesh - Act

Andhra Pradesh Scheduled Castes Sub-Plan (SCSP) and Tribal Sub-Plan (TSP) (Planning, Allocation and Utilization of Financial Resources) Rules of 2013

ANDHRA PRADESH

India

Andhra Pradesh Scheduled Castes Sub-Plan (SCSP) and Tribal Sub-Plan (TSP) (Planning, Allocation and Utilization of Financial Resources) Rules of 2013

Rule

ANDHRA-PRADESH-SCHEDULED-CASTES-SUB-PLAN-SCSP-AND-TRIBAL-SUB-PLAN-TSP-PLANNING-ALLOCATION-AND-UTILIZATION-OF-FINANCIAL-RESOURCES-RULES-OF-2013 of 2013

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Andhra Pradesh Scheduled Castes Sub-Plan (SCSP) and Tribal Sub-Plan (TSP) (Planning, Allocation and Utilization of Financial Resources) Rules of 2013

Published vide Notification No. G.O. Ms. No. 23 Tribal Welfare (TSP) Department, dated 28.04.2015

Last Updated 8th August, 2019

No. G.O. Ms. No. 23. - In exercise of the powers conferred under sub-section (1) of Section 27 of Andhra Pradesh Scheduled Castes Sub-Plan and Tribal Sub-Plan (Planning, Allocation and Utilization of Financial Resources) Act, 2013 (Act No.1 of 2013), the Governor of Andhra Pradesh hereby makes the following Rules relating to the Scheduled Castes Sub-Plan and Tribal Sub-Plan.

1.

Short title, Extent and commencement.

(1)

These Rules may be called Andhra Pradesh Scheduled Castes Sub-Plan (SCSP) and Tribal Sub-Plan (TSP) (Planning, Allocation and Utilization of Financial Resources) Rules of 2013.

(2)

They shall extend to whole of the State of Andhra Pradesh.

(3)

They shall come into force at once.

2.

Definitions.

(a)

"The Department" means any Government Department concerned with implementation of the Plan Schemes for the welfare of Scheduled Castes and Scheduled Tribes;

(b)

"Gaps in development" means differences in development indicators of Scheduled Castes/Scheduled Tribes when compared to the State averages, as may be prescribed particularly relating to human and economic development;

(c)

"General Schemes" means schemes included in the Annual Plans of the Departments which benefit all social groups including Scheduled Castes and Scheduled Tribes;

(d)

"Government" means the State Government of Andhra Pradesh;

(e)

"Nodal Agency for SCSP" means the committee headed by Minister of Social Welfare;

(f)

"Nodal Agency for TSP" means the committee headed by Minister of Tribal Welfare;

(g)

"Nodal Department" means Social Welfare Department for Scheduled Castes Sub-Plan and Tribal Welfare Department for Tribal Sub-Plan;

(h)

"Notification" means notification published in the Andhra Pradesh Gazette and the word 'Notified' shall be construed accordingly;

(i)

"Prescribed" means prescribed by the Government by rules made under the Act;

(j)

"State Council" means State Council for Development of Scheduled Castes and Scheduled Tribes constituted under the Act;

(k)

"Scheduled Castes and Scheduled Tribes" shall have the meanings assigned respectively under clauses (24) and (25) of Article 366 of the Constitution of India;

(l)

"Scheduled Castes Sub-Plan (SCSP)" means the plan approved by the State Council for inclusion in the Annual plan of the Department to bridge the gap in development of Scheduled Castes and shall include SC component of general schemes;

(m)

"Tribal Sub-Plan (TSP)" means the Plan approved by the State Council for inclusion in the Annual Plan of the

Department to bridge the gap in development of Scheduled Tribes and shall include the ST component of general schemes;

(n)

"Scheduled Castes Sub-Plan /Tribal Sub-Plan Fund" means a portion of the total plan outlays of the State, in a financial year, as earmarked under the section 3;

(o)

"Scheduled Castes Sub-Plan /Tribal Sub-Plan Schemes" means the "Scheduled Castes Sub-Plan /Tribal Sub-Plan schemes included in the "Scheduled Castes Sub- Plan/ Tribal Sub-Plan of the Departments;

(p)

"Scheduled Castes/Scheduled Tribe habitation" means any habitation where population of Scheduled Castes or Scheduled Tribes or combined population of Scheduled Castes and Scheduled Tribes is not less than 40% of the total population of the habitation;

(q)

"Sub-Plans" means Scheduled Castes Sub-Plan (SCSP) or Tribal Sub-Plan (TSP) or both;

(r)

"Scheduled Areas" means areas notified under Part C of Fifth Schedule to Constitution of India;

(s)

"Report regarding administration of Scheduled Areas" means the Report by the Governor to the President of India regarding administration of Scheduled Areas as mentioned in paragraph 3 of Part A of Fifth Schedule to Constitution of India;

(t)

"A.P. Tribes Advisory Council" means the Tribes Advisory Council as mentioned in paragraph 4 of Part B of Fifth Schedule to Constitution of India."

(u)

"Web portal" means the portal to be developed for displaying the details of SCSP/TSP for public knowledge.

Subject to the provisions of sub-rule (2)(b), the Nodal Departments for SCSP and TSP shall identify gaps in development.

1. Each department shall estimate the gaps in the development of Scheduled Castes/ Scheduled Tribes, prioritise the development needs of Scheduled Castes/ Scheduled Tribes through a consultative process and shall formulate the Scheduled Castes Sub- Plan/Tribal Sub-Plan schemes and prepare the Sub-Plans comprising the Scheduled Castes Sub-Plan/Tribal Sub-Plan schemes, with in the State Plan priorities.

2. The Nodal Department shall take up necessary measures to identify the gaps in levels of development of Scheduled Castes and Scheduled Tribes and general population and also within Scheduled Castes and Scheduled Tribes and also between tribes living in scheduled areas and plain areas through:

(a)

Database shall be built up on Census data from time to time on key indicators, including the following:

Demographic:

i) Population, male, female

ii) Gender ratio,

iii) Population growth

iv) Infant mortality, girl child mortality and under 5 mortality.

Health related:

v) Births attended by skilled health personnel.

vi) Population undernourished.

vii) Children under weight/ height for age

viii) Infants with low birth weight.

ix) Maternal Mortality.

x) One year old fully immunized.

xi) HIV prevalence.

xii) Fevers treated with anti malarial and anti TB drugs.

xiii) Availability of beds in the hospitals for every 25,000 population

Education related:

- xiv) Literacy, Female literacy.
- xv) Adult literacy rate.
- xvi) Youth literacy rate.
- xvii) Net enrolment ratio.
- xviii) Drop out at Class V, VII and X
- xix) Tertiary students in Engineering, Medicine and other Professional Courses.
- xx) Access to public employment, with reference to All India Services,

Area development:

- xxi) Population using improved sanitation
- xxii) Population using an improve water source,
- xxiii) Coverage of safe drinking water supply
- xxiv) Connectivity, length of kms laid BT
- xxv) Availability of public transportation
- xxvi) Electrification of habitations, quality of power supply, Electricity consumption.
- xxvii) Area brought under cultivation
- xxviii) Area covered under assured irrigation.
- xxix) Productivity of major crops per ha.
- xxx) Availability of FP shops per every 1000 population.
- xxxi) Availability of permanent housing.

? Baseline surveys specifically designed and taken up for this purpose through reputed institutions including CESS, TCR&TI.

? Surveys taken up by various departments such as School Education, Medical and Health etc., on various indicators,

? Studies of impact of various projects implemented for the development of STs.

Subject to the provisions of sub-rule (1) (i), the Government shall earmark Scheduled Castes Sub-Plan/ Tribal Sub-Plan fund from State Annual Plan Outlays under (section 3)

1. The Government, in every financial year from the financial year 2014-15 onwards, shall respectively earmark 17.08% and 5.53% of the total State Annual Plan Outlay to Scheduled Castes Sub-Plan (SCSP) and Tribal Sub-Plan (TSP) and allocate to finance Scheduled Castes Sub-Plan (SCSP) Fund and Tribal Sub-Plan (TSP) Fund, in proportion to their respective populations as per the latest data of Population Census 2011.

2. By 1st of October, in every financial year, the Planning Department in consultation with the Finance Department shall communicate the tentative size of the outlay of the annual plan of next financial year and also the priorities of the State of Andhra Pradesh to the Nodal Departments.

3.

The Scheduled Castes Sub-Plan (SCSP) and Tribal Sub-Plan (TSP) fund outlays shall be revised according to annual plan outlay passed in the State Legislature.

4.

The Nodal departments of SCSP and TSP shall communicate plan outlays to the other departments as prescribed in section 4. A tentative plan outlay fund shall be prepared by the Nodal departments of SCSP and TSP, duly following the provisions of the Act, mainly;

(a)

Promotion of equity among Scheduled Castes and Scheduled Tribes. - The departments shall prepare Scheduled Castes Sub-Plan/ Tribal Sub-Plan to promote equity in the development among various social groups within Scheduled Castes / Scheduled Tribes and focused development of backward Scheduled Caste / Scheduled Tribe habitations. In case of Tribal Sub-Plan, special attention shall be paid to Scheduled Tribes residing in the Scheduled Areas.

(b)

Schemes to be included under the Scheduled Castes Sub-Plans and Tribal Sub- Plans. - The Sub-Plans of the departments shall include only such schemes that have the potential to bridge the gaps in development and secure direct and quantifiable benefits to the Scheduled Caste / Scheduled Tribe individuals or Scheduled Caste/Scheduled Tribe households or Scheduled Caste/Scheduled Tribe habitations or Tribal areas and Primitive Tribal Groups as proposed under Section 11(a), (b), (c) and (d) of the Act.

The Sub-Plans of the departments shall ensure coverage of Scheduled Castes/Scheduled Tribes in the ongoing general schemes consistent with the eligibility of the same.

Accordingly, 7% of outlay in case of SCSP and 3 % of outlay in case of TSP shall be deemed to have been allocated to SCSP and TSP respectively for nondivisible infrastructure works.

Subject to the provisions of sub-rule(1), the Nodal Department for SCSP and TSP shall Identify Scheduled Castes Sub-Plan /Tribal Sub Plan schemes and preparation of sub plans by the departments under section (8).

1. The Nodal Departments shall take up a detailed discussion in the second week of October every year with each department for which SCSP/ TSP outlays are communicated and review each scheme and identify only those schemes that secure direct and quantifiable benefits to the SC/ST individuals or SC/ST households or SC/ST habitations or scheduled areas and that have potential to bridge the gaps in socio-economic development of SCs/STs with particular focus on education, income generation and access to basic amenities conforming to certain quality norms.

2. Prioritize the development needs of the Scheduled Castes/ Scheduled Tribes in consultation with the primary stakeholders, before finalizing the schemes.

3. Design schemes that have potential to accelerate the development of Scheduled Castes / Scheduled Tribes and bridge the gaps in development in a time bound manner

4. Schemes to secure greater access of Irrigated land, promotion of Self-employment schemes, and enterprise development to Scheduled Castes/ Scheduled Tribes

5.

The Sub-Plans of the departments shall promote equity in the development among various social groups within Scheduled Castes and Scheduled Tribes and focused development of backward Scheduled Castes/Scheduled Tribe habitations. In case of Tribal Sub-plan, attention shall be paid to Scheduled Tribes residing in the Scheduled Areas.

6.

Schemes to be aligned with overall State Agenda or Priorities of the Government. At least one third of the investment should be in infrastructure.

Subject to the provisions of rules, each Department shall prepare budget proposals of Scheduled Castes Sub-Plan/Tribal Sub-Plan for appraisal by the Nodal departments under Section (9);

1. After identifying the schemes under SCSP/TSP, the Nodal Department shall define the operational scope of each scheme, viz., whether it is limited to scheduled areas or to the entire state and also the proportion in which the physical and financial targets to be distributed district wise. Each department shall furnish SCSP/TSP schemes consisting of;

(i)

A note explaining the objectives of each scheme, pertaining to SCSP/TSP,

(ii)

Physical and financial progress under Scheduled Caste Sub Plan/Tribal Sub Plan of the current year as on 30th of September,

(iii)

Physical and financial projections for the next financial year for each scheme along with work wise details wherever necessary,

(iv)

Any surrenders or additional requirements if any under each scheme based on the midterm performance,

(v)

Issues, if any, brought to the notice of the Nodal Agency for SCSP/TSP.

2. The Nodal Department shall in turn scrutinize the sub plans furnished by the line departments and after satisfying that they are in tune with the provisions of the Act, shall place them before Nodal Agency, for recommending for approval of the State Council before 31st of October of every year, through Planning Department.

3. Submission of Sub Plans for Appraisal by the Nodal Agencies. - The schemes that fulfil the norms laid down in the Act shall be recommended by Nodal Agency for Social Welfare and Tribal Welfare for inclusion in the Annual Plan proposals of the departments and aggregated for placing before the State Council for Development of Scheduled Castes and Scheduled Tribes, for consideration and approval as pre-budget process.

4. The outlays of departments confirmed by the State Council for the Development of SCs and STs shall be final.

I. After receiving the approval of the State Council, the Nodal Agency for SCSP/TSP shall communicate the approval to the departments with request to furnish their budget proposals for the next financial year as per the schedule and

procedure to be communicated by the Finance Department from time to time.

II. Once the budget is approved by the Legislature the Secretary, Finance shall issue BROs for full budget to the departments concerned duly informing the Nodal Departments.

III. The respective departments shall take further action to issue necessary administrative sanctions proceedings and technical sanctions based on the various levels of delegations in force, duly informing the Nodal Departments concerned.

IV. Scheduled Caste Sub Plan / Tribal Sub Plan fund shall not be allocated to General Schemes that are accessible to all including the Scheduled Castes and Scheduled Tribes.

Procedure with regards to reallocation of funds:

1. In respect of those schemes where the performance of the department is not found satisfactory, the Nodal Departments shall take up a detailed appraisal and identify the impediments and place a note before the Nodal Agency for SCSP/TSP for a detailed discussion.

2. The Nodal Agency for SCSP / TSP shall take up a detailed discussion of such schemes with such of those departments and suggest necessary measures to overcome the impediments and to improve performance. This should be done preferably before 31st of October every year.

3. In spite of such an advice from the Nodal Agency of SCSP / TSP if the department does not improve progress, the Nodal Department may take up a review by 15th December every year and identify the amounts that can be reduced scheme wise and place them before Nodal Agency for SCSP / TSP recommending for reallocation to needy departments for their SCSP / TSP.

4. The Nodal Agency for SCSP / TSP shall furnish their recommendations to the Finance Department for reducing the releases under Quarter-IV for those schemes where performance is poor and for reallocating to those needy departments scheme wise.

5. Such recommendations shall be placed before the State Council for their perusal from time to time.

Subject to the provisions of sub-rule (2) the Finance Department shall designate an exclusive Principal Secretary for monitoring expenditures under the Scheduled Castes Sub-Plan/ Tribal Sub Plan under Section (14)

1. The Finance department shall designate an exclusive Principal Secretary for performing the functions relating to budget, implementation and allocation according to the provisions of the rules within the overall discipline of the ways and means positions as determined by the Finance Department.

Subject to the provisions of sub-rule (2) (j), the State Council for Development of Scheduled Castes and Scheduled Tribes under sub-section (1) of Section (16) shall consist the following composition.

1

Chief Minister

Chairman

2

Minister, Higher Education

Member

3

Minister, Finance and Planning

Member

4

Minister, Social Welfare

Member

5

Minister, Tribal Welfare

Member

6

Minister, Panchayat Raj & Rural Water Supply
and Sanitation

Member

7

Minister, Roads and Buildings

Member

8

Minister, Industries

Member

9

Minister, Health

Member

10

Minister, Rural Development

Member

11

Minister, Primary Education

Member

12

Minister, MA&UD

Member

13

Minister, Housing

Member

14

Minister, Women Development and Child Welfare

Member

15

Minister, Forest, Environment, Science and

Technology

Member

16

Chairman, SC/ST Commission

Member

17 to 21

Five non-official members, consisting of three members from SC community (of which at least one member should be woman) and two members from ST community (of which at least one member should be woman)

Member

22

Chief Secretary

Member

23 to 36

Principal Secretary of the Departments mentioned above at serial numbers 2 to 15

Member

37

Principal Secretary, Planning

Member-Convenor

2. Special Invitees. - The State Council may invite any person as deemed necessary as Special Invitee.

3. Nomination of Non-Official Members. - The Chairman shall nominate five non-official members, consisting of three members from SC community (of which at least one member should be woman) and two members from ST community (of which at least one member should be woman)

4. Terms of office and allowances of Non-Official Members of State Council. - Non-Official Members of the State Council shall hold office for one term of two years only. They shall receive fees and allowances as prescribed by the

Government from time to time.

5. Meetings of the State Council. - The State Council shall meet at least twice in a year.

6. Functions. - The State Council shall,

(a)

advise State Government on all the policy matters relating to Scheduled Castes Sub-Plan/Tribal Sub-Plan;

(b)

suggest measures for proper planning and implementation of schemes by the departments;

(c)

approve the Annual Scheduled Castes Sub-Plan /Tribal Sub-Plan proposals of the Departments;

(d)

Perform such other functions as may be prescribed and are necessary for implementation for Scheduled Castes Sub-Plan and Tribal Sub-Plan.

7.

The Annual SCSP/TSP Plan as approved by the State council shall be deemed to have been accorded financial concurrence by the Finance Department under the respective SCSP/TSP Budgetary provision for that year. The respective Departments will take steps to issue administrative approval within (10) days of receipt of State Council approval following usual procedures.

8.

Planning Department shall assist the State Council in discharge of its functions and coordination with the respective Nodal Agencies /Nodal Departments.

Subject to the provisions of sub-rule (2) (e) the Nodal Agency for Scheduled Castes Sub Plan under sub-section (1) of Section (18) shall consist the following composition.

1

Minister for Social Welfare

Chairman

2

Principal Secretary, Social Welfare

Member-Convenor

3

Principal Secretary, Panchayat Raj

Member

4

Principal Secretary, Rural Development

Member

5

Principal Secretary, Rural Water Supply and

Sanitation

Member

6

Principal Secretary, Housing

Member

7

Principal Secretary, Finance (FP)

Member

8

Principal Secretary, Planning

Member

9

Principal Secretary, Primary Education

Member

10

Principal Secretary, Health, Medical and Family
Welfare

Member

11

Principal Secretary, Women Development and
Child Welfare

Member

12

Principal Secretary, Agriculture

Member

13

Principal Secretary, Animal Husbandry

Member

14

Principal Secretary, Irrigation

Member

15

Principal Secretary, Secondary Education

Member

16

Principal Secretary, R & B

Member

17

Principal Secretary, MA & UD

Member

18

Principal Secretary, Higher Education

Member

19

Commissioner, Social Welfare

Member

20

Secretary, APSWREIS

Member

21

VC and MD, APSCCFC

Member

22

MD, LIDCAP

Member

23

SCSP Unit Head, Sub-Plan Research Unit

Member

2. Special Invitee. - The Nodal Agency may invite any person as deemed necessary as Special Invitee to its meetings.

3. The Nodal Agency for SCSP shall carry out the following functions:

I. Appraisal of schemes submitted by departments - The Nodal Agency for SCSP shall appraise Scheduled Castes Sub-Plan Schemes submitted by the departments for ensuring conformity to the provisions of the Act namely:

A. The schemes proposed should secure direct and quantifiable benefits to Scheduled Caste individuals or Scheduled Caste households or Scheduled Caste habitations and accounted for. The Nodal Agency, while indicating allocation of Scheduled Castes Sub-Plan Fund to the Scheduled Castes Sub-Plan schemes shall follow the norms, namely:

i. for schemes exclusively benefiting Scheduled Caste individuals or Scheduled Caste households, 100% of scheme

cost shall be allocated and accounted for under Scheduled Castes Sub-Plan fund;

ii. for schemes benefiting Scheduled Caste habitations, 100% of scheme cost shall be allocated and accounted for under Scheduled Castes Sub-Plan fund. In case of other habitations the cost shall be allocated and accounted for under Scheduled Castes Sub-Plan in proportion of the population of the Scheduled Castes;

iii. for general schemes, included in the Sub-Plans, benefiting Scheduled Caste individuals or Scheduled Caste households, along with others, the scheme cost shall be allocated and accounted for under Scheduled Castes Sub-Plan, in proportion to the Scheduled Caste beneficiaries covered or the actual amounts spent on Scheduled Castes;

iv. in respect of non-divisible infrastructure works, a portion of the scheme cost as may be determined by the Government shall be deemed to have been attributed for Scheduled Castes Sub-Plan .

B. The schemes proposed should have the potential to bridge the gaps in development;

C. The schemes under SCSP should be consistent with the Annual and Five Year Plans and priorities of the State of Andhra Pradesh as may be communicated by the Planning Department. The Nodal Agency should therefore as far as possible ensure that Scheduled Castes Sub-Plan allocation are met within each sector of the Plan individually;

D. the schemes should promote equity in the development among various social groups within Scheduled Castes and focused development of backward Scheduled Caste habitations;

E. The Nodal Agency should ensure at least 1/3rd of the SC Plan outlay is devoted to capital expenditure debatable to the Head of Account 4000 onwards.

II. Preparation and Recommendation of SCSP. - The schemes that fulfil the norms as laid down in the Act shall be recommended by the Nodal Agency for SCSP for inclusion in the Annual Plan proposals of the departments and aggregated for placing before the State Council for Development of Scheduled Castes and Scheduled Tribes through the Planning Department, for consideration and approval as pre-budget process.

III. Reallocation. - The Nodal Agency shall recommend re-allocation of the budget allotted from the departments, which are not in a position to incur expenditure, to the other needy departments or as may be necessary to ensure expenditure of funds allocated under the SCSP.

IV. Review and Monitoring. - The Nodal Agency shall review and monitor the allocation, expenditure and implementation of SCSP.

V. Identify and Overcome Impediments. - The Nodal Agency shall identify impediments and suggest measures for overcoming them to ensure that all departments spend the money earmarked for SCSP.

VI. Coordination. - The Nodal Agency shall co-ordinate with the departments for preparation of State Level and District Level Scheduled Castes Sub-Plan.

VII. Transparency and Accountability. - The Nodal Agency shall cause the maintenance of scheme wise, district wise, village wise and beneficiary wise details and through the Nodal department set up a web portal for tracking the progress of the implementation, expenditure, output and outcome indicators as may be prescribed in Scheduled Castes Sub-Plan.

VIII. Facilitating Social Audit. - The Nodal Agency shall facilitate at least annual social auditing of expenditure of Scheduled Castes Sub-Plan and facilitate analysis of improvement in Human Development Index against the projections for the State and district.

IX. Annual Report.- The Nodal Agency shall authorize the Nodal department to place before the State Legislature, an Annual Report on outcome of implementation of Scheduled Castes Sub-Plan containing department-wise achievements and the un-utilized funds during the financial year under report.

X. Any other function as may be assigned by the government from time to time.

4. The directions of the Nodal Agency in the implementation of its functions shall be binding on the Department.

5. The Nodal Agency shall meet at least once in two months or as frequently as necessary.

6. The Social Welfare Department shall act as the Nodal Department for assisting the Nodal Agency for SCSP to perform its functions. The Social Welfare Department as Nodal Department shall constitute an Administrative and Technical Support Unit for assisting it in performing functions and discharge duties assigned to it in assisting the Nodal Agency for SCSP.

7. The Social Welfare Department shall establish a Sub-Plan Research Centre at Centre for Economic and Social Studies, Hyderabad (CESS) to carry out studies and gap analysis for identifying priority areas of investment under the SCSP.

8. The Social Welfare Department shall also establish GIS and MIS Cells with requisite technical staff to assist it in

planning and monitoring the SCSP.

9.

All the related departments shall prepare the SCSP for approval by the Nodal Agency and implement the Scheduled Castes Sub Plan as per the directions of the Nodal Agency for SCSP.

Subject to the provisions of sub-rule (2) (f) the Nodal Agency for Tribal Sub-Plan under subsection (2) of Section (18) shall consist the following composition.

1

Minister for Tribal Welfare

Chairman

2

Principal Secretary, Tribal Welfare

Member-Convenor

3

Principal Secretary, Panchayat Raj

Member

4

Principal Secretary, Rural Development

Member

5

Principal Secretary, Rural Water Supply and

Sanitation

Member

6

Principal Secretary, Housing

Member

7

Principal Secretary, Finance (FP)

Member

8

Principal Secretary, Planning

Member

9

Principal Secretary, Primary Education

Member

10

Principal Secretary, Health, Medical and Family

Welfare

Member

11

Principal Secretary, Women Development and Child

Welfare

Member

12

Principal Secretary, Agriculture

Member

13

Principal Secretary, Animal Husbandry

Member

14

Principal Secretary, Irrigation

Member

15

Principal Secretary, Secondary Education

Member

16

Principal Secretary, R & B

Member

17

Principal Secretary, MA&UD

Member

18

Principal Secretary, Higher Education

Member

19

Commissioner, Tribal Welfare

Member

20

Secretary, APTWREIS (GURUKULAM)

Member

21

MD, TRICOR

Member

22

TSP Unit Head, Sub-Plan Research Unit

Member

2. Special Invitee. - The Nodal Agency may invite any person as deemed necessary as Special Invitee to its meetings.

3. The Nodal Agency for TSP shall carry out the following functions:

I. Appraisal of Schemes submitted by Departments - The Nodal Agency for TSP shall appraise the Tribal Sub-Plan Schemes submitted by departments, for ensuring conformity to the provisions of the Act namely

A. The schemes proposed should secure direct and quantifiable benefits to the Scheduled Tribes individuals or Scheduled Tribes households or Scheduled Tribes habitations. The Nodal Agency, while indicating allocation of Tribal Sub-Plan Fund to the Tribal Sub-Plan schemes shall follow the norms, namely:

i. for schemes exclusively benefiting Scheduled Tribe individuals or Scheduled Tribe households, 100% of scheme cost shall be allocated and accounted for under Tribal Sub-Plan fund;

ii. for schemes benefiting Scheduled Tribe habitations, 100% of scheme cost shall be allocated and accounted for under Tribal Sub-Plan fund. In case of other habitations the cost shall be allocated and accounted for under Tribal Sub-Plan in proportion to the population of the Scheduled Tribes;

iii. for general schemes, included in the Sub-Plans, benefiting Scheduled Tribe individuals or Scheduled Tribe households, along with others, the scheme cost shall be allocated and accounted for under Tribal Sub-Plan, in proportion to the Scheduled Tribe beneficiaries covered or the actual amounts spent on Scheduled Tribes;

iv. in respect to non-divisible infrastructure works a portion of the scheme cost as may be determined by the Government shall be deemed to have been attributed for Tribal Sub-Plan;

B. The schemes proposed should have the potential to bridge gaps in development;

C. The schemes under TSP should be consistent with the Annual and Five Year Plans and priorities of the State of Andhra Pradesh as may be communicated by the Planning Department. The Nodal Agency should therefore as far as possible ensure that Tribal Sub-Plan allocations are met within each sector of the Plan individually;

D. The schemes should promote equity in development among various social groups within Scheduled Tribes and focused development of backward Scheduled Tribes habitations. Special attention shall be paid to Scheduled Tribes residing in the Scheduled Areas;

E. The Nodal Agency should ensure at least 1/3 rd of the TSP Plan outlay is devoted to capital expenditure debitable to the Head of Account 4000 onwards.

II. Preparation and Recommendation of TSP - The schemes that ful fill the norms as laid down in the Act, shall be

recommended by the Nodal Agency for TSP for inclusion in the Annual Plan proposals of the departments and aggregated for placing before the State Council for Development of Scheduled Castes and Scheduled Tribes through the Planning Department, for consideration and approval as pre-budget process.

III. Reallocation - The Nodal Agency shall recommend re-allocation of budget allotted from departments, which are not in a position to incur expenditure, to other needy departments or as may be necessary to ensure expenditure of funds allocated under the TSP.

IV. Once the Nodal Agency approves the reallocations the file shall be circulated by Nodal Department directly to the Finance Department for re allocation of funds. There is no need to circulate the files to all line departments.

V. Review and Monitoring - The Nodal Agency shall review and monitor the allocation, expenditure and implementation of TSP.

VI. Identify and Overcome Impediments - The Nodal Agency shall identify impediments and suggest measures for overcoming them to ensure that all departments spend the funds earmarked for TSP.

VII. Coordination- the Nodal Agency shall co-ordinate with the departments in the preparation of State Level and District Level Tribal Sub-Plan.

VIII. Transparency and Accountability - The Nodal Agency shall cause the maintenance of scheme wise, district wise, village wise and beneficiary wise details and through the Nodal department set up a web portal for tracking the progress of the implementation, expenditure, output and outcome indicators as may be prescribed in Tribal Sub-Plan.

IX. Facilitating Social Audit: The Nodal Agency shall facilitate at least annual social auditing of expenditure of Tribal Sub-Plan and facilitate analysis of improvement in Human Development Index against the projections for the State and District.

X. Annual Report- The Nodal Agency shall authorize the Nodal department to place before the State Legislature, an Annual Report on outcome of implementation of Tribal Sub-Plan containing department-wise achievements and the un-utilized funds during the financial year under report. The report on TSP to the extent of scheduled areas shall form part of the Report regarding the administration of scheduled areas to be submitted to Governor in consultation with A.P. Tribes Advisory Council.

XI. Any other function as may be assigned by the government from time to time.

3. The directions of the Nodal Agency in the implementation of its functions shall be binding on the department.

4. The Nodal Agency shall meet at least once in two months or as frequently as necessary.

5. The Tribal Welfare Department shall act as the Nodal Department for assisting the Nodal Agency for TSP to perform its functions. The Tribal Welfare Department as Nodal Department shall constitute an Administrative and Technical Support Unit for assisting it in performing functions and discharge duties assigned to it in assisting the Nodal Agency for TSP.

6. The Tribal Welfare Department shall establish a Sub-Plan Research Centre at TCR and TI through Centre for Economic and Social Studies, Hyderabad (CESS) to carry out studies and gap analysis for identifying priority areas of investment under the TSP.

7. The Tribal Department shall also establish GIS and MIS Cells with requisite technical staff to assist it in planning and monitoring the TSP.

8. All the related departments shall prepare the TSP for approval by the Nodal Agency and implement the TSP as per the directions of the Nodal Agency for TSP.

Subject to the provisions of sub-rule (2) Nodal Agency for SCSP and TSP shall maintain a web portal under sub-section (7) of Section (19).

1. The Nodal Agency shall maintain a web portal through the Nodal Department and all the departments shall upload the data pertaining to the schemes under SCSP/ TSP online.

2. The departments shall also upload the data of beneficiaries, works, habitations covered in the web portal.

3. The web portal shall also have GIS interface.

Subject to the provisions there shall be an Administrative and Technical Support Unit in Nodal Department for Scheduled Castes Sub-Plan /Tribal Sub-Plan under section 20.

1. The Nodal Departments shall constitute an administrative and Technical Support Unit for assisting it in performing functions and discharge duties assigned to it in assisting the Nodal Agency for SCSP/TSP.

2. The Tribal Department shall establish a sub plan research center at TCR&TI through Center for Economic and Social Studies, Hyderabad (CESS) to carry out studies and gap analysis for identifying priority areas of investment under the

TSP.

3. The Tribal Welfare Department/Social Welfare Department shall also establish GIS and MIS Cell with requisite technical staff to assist it in planning and monitoring the TSP.

Subject to the provisions there shall be a Sub Plan support Unit at department level under section 21.

1. There shall be Sub Plan Support units in the departments of Rural Development, Housing, Agriculture and allied, Education, Drinking water, Health, Women and Child Development sector, Roads and Planning Departments.

2. The unit shall be responsible for proper planning, monitoring, evaluation and research coordination by deputing regular staff from departments or by hiring professionals on contract basis.

Subject to the provisions of sub- rule of (1) of Section No.22 there shall be District Monitoring Committee for SCSP and TSP and the composition shall be as follows:

1

District Collector

Chairman

2

ITDA Districts

a(1) Project Officer, ITDA

Vice-Chairman

a(2) Deputy Director, Tribal Welfare Dept.

Member Convener for TSP

a(3) Joint Director/Deputy Director, Social Welfare Dept.

Member-Convener for SCSP

Non-ITDA Districts

b(1) Joint Collector

Vice-Chairman

b(2) District Tribal Welfare Officer

Member Convenor for TSP

b(3) Joint Director/Deputy Director, Social Welfare Dept.

Member-Convenor for SCSP

3

Chief Planning Officer

Member

4

District Educational Officer

Member

5

District Medical & Health Officer

Member

6

Joint Director, Agriculture

Member

7

Joint Director, Animal Husbandry

Member

8

Superintending Engineer, Irrigation

Member

9

Superintending Engineer, R & B

Member

10

Superintending Engineer, RWS

Member

11

Superintending Engineer, PR

Member

12

Superintending Engineer, TRANSCO

Member

13

Executive Engineer, Tribal Welfare

Member

14

Project Director, Women Development & Child

Welfare

Member

15

Project Director, MEPMA

Member

2. Special Invitee. - The District Monitoring Committee may invite any person as deemed necessary as Special Invitee to its meetings.

3. Functions. - a. Implementation of Scheduled Castes Sub-Plan (SCSP) and Tribal Sub Plan: The District Monitoring Committee for SCSP and TSP shall review the implementation Scheduled Castes Sub-Plan and Tribal Sub Plan in the district with line departments for ensuring conformity to the provisions of the Act.

b. Frequency of meetings: The District Monitoring Committee shall meet at least once in two months or as frequently as necessary.

c. Review and Monitoring: The District Monitoring Committee shall review and monitor the allocation, expenditure and implementation of SCSP and TSP in the district based on the scheme wise physical and financial targets communicated by the Nodal departments from time to time.

d. Monitor the Implementation of Scheduled Castes Sub-Plan and Tribal Sub Plan: The District Monitoring Committee shall monitor the implementation of Scheduled Castes Sub-Plan and Tribal sub plan to promote equity in the development among various social groups within Scheduled Castes and Scheduled Tribes and focused development of backward Scheduled Caste habitations and Tribal habitations, with special attention on Scheduled Tribes residing in scheduled areas.

e. Coordination: The District Monitoring Committee shall coordinate with the departments in the preparation of district level Scheduled Castes Sub-Plan and Tribal sub plan.

f. Transparency and Accountability: The District Monitoring Committee shall cause the maintenance of scheme wise, village wise and beneficiary wise details of both physical and financial benefits and shall be placed in the web portal for tracking the progress of the implementation, expenditure, output and outcome indicators as may be prescribed in Scheduled Castes Sub-Plan and Tribal sub plan.

g. Facilitating Social Audit: The District Monitoring Committee shall facilitate at least annual social auditing of expenditure of Scheduled Castes Sub-Plan and Tribal sub plan and facilitate analysis of improvement in Human Development Index against the projections for the State and district.

h. Gap analysis for better targeting i.e. gaps in development, spatial distribution of deprivation of socio economic indicators for prioritizing the investment being utilized for gaps identification shall be done by the District Monitoring Committee.

i. Third party physical verification: The District Monitoring Committee shall also take up the third party physical verification of works/schemes being implemented under SCSP and TSP.

j. Annual Report: The District Monitoring Committee shall submit an annual report to the Nodal Department / Nodal Agency of SCSP and TSP on outcome of implementation of SCSP and TSP containing department wise achievements and the un utilized funds during the financial year under report.

4. The sanctions and the selection of beneficiaries, if necessitated, under SCSP &TSP at the district level shall be made with the approval of the District In-charge Minister.

5. Any other function as may be assigned by the Government / Nodal Department / Nodal Agency of SCSP and TSP from time to time.

Subject to the provisions of sub-rule (1) the Nodal Department for SCSP and TSP shall take steps for ensuing effective implementation, awareness, mass contact program, social audit and monitoring of SCSP/ TSP under section 23.

1. The State Council and the Nodal Agency for SCSP/ TSP shall issue necessary directions and guidelines and instructions to the Nodal Departments, the line departments and the District Level Monitoring Committees on the following aspects for effective implementation of SCSP/ TSP:

2. Awareness and mass contact program: Kalajathas and other forms of audio-visual publicity to be given for the programs taken up under SCSP/TSP. For this purpose, certain portion of SCSP/TSP fund may be allocated besides pooling up the grants available for publicity, awareness and IEC activities under various schemes.

3. Training to Peoples' Representatives and Community Representatives: Necessary training programs shall be arranged for the Peoples' Representatives, Community representatives and Gramsabhas in matters concerning SCSP/TSP planning, implementation and monitoring.

4. Social Audit: Social audit shall be taken up once in a year by the District Level Monitoring Committees.

5. Monitoring of SCSP/ TSP: The physical and financial progress under each scheme under SCSP/ TSP shall be uploaded in the web portal and the Nodal Agencies shall take necessary steps to design appropriate monitoring formats for this purpose.

Subject to the provisions of sub-rule (1) the Nodal Department for SCSP and TSP shall take steps for ensuing transparency and accountability in the implementation of Scheduled Castes Sub-Plan and Tribal Sub Plan under section 24

1. Measures for ensuring transparency: Discussion and review on measures for ensuring transparency shall be a mandatory item on the agenda of the State Council and the Nodal Agency for SCSP/ TSP. This includes discussion and issuing directions on tendering process, procurement, regularity of internal audit, internal vigilance mechanism, and stringent action on the persons found responsible for financial irregularities.

2. Rewards for commendable performance: There shall be rewards for the departments for better planning, better targeting and timely and effective implementation of the SCSP/ TSP schemes. The Nodal Agency shall identify the persons responsible for such performance and recommend to State Council for issuing commendation letters.

3. Penalties for delays and non performance: Wherever delays and poor performance are noticed in implementing the schemes under SCSP/ TSP, the Nodal Agency for SCSP/ TSP may identify the persons responsible through an objective verification and recommend to the State Council for imposing appropriate penalties.

4. Surprise visits and physical verification: The monitoring of SCSP/TSP shall also include surprise visits, physical verification of the works, functioning of the institutions, progress reports etc.,

5. Concurrent Evaluation: The Nodal Agency shall also take up concurrent evaluation of important schemes under SCSP/ TSP through CESS, SC corporation, TCR&TI and other reputed Research Institutions and Universities.

Subject to the provisions of sub-rule (1) the Nodal Department for SCSP and TSP shall place the annual report on the implementation of SCSP/ TSP to State Legislature under Section 26.

1. The Nodal Department shall prepare the Annual Report on outcome of implementation of the SCSP / Tribal Sub plan containing department wise achievements and the unutilized funds during the financial year under report and place it before the Nodal Agency for SCSP/ TSP.

2. The Nodal Agency shall place it before the State Legislature.

3. The Nodal Department for TSP shall also prepare the Annual Report on outcome of implementation of the Tribal Sub plan containing department wise achievements and the unutilized funds during the financial year under report to the extent of scheduled areas and place it before the AP Tribes Advisory Council.

4. The Nodal Department for TSP shall include the annual report in the annual Agency Administration Report and submit to Government.

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